

VCU306460 Rhodes, Patricia vs. Kaweah Health Medical Center

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-09-21

Motion: Kaweah's Motion to Determine Good Faith Settlement

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Re: Rhodes, Patricia vs. Kaweah Health Medical Center

Case No.: VCU306460

Date: September 21, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Kaweah's Motion to Determine Good Faith Settlement

Tentative Ruling: To grant the unopposed motion

Facts

In this matter, Plaintiffs Third Amended Complaint alleged Elder Abuse, Fraud- Misrepresentation, Fraud- Constructive, Nursing Home Abuse, and Wrongful Death against two "chains" of Defendants:

First Chain: Defendants Kaweah Health Skilled Nursing Facility [erroneously sued herein as Kaweah Health Medical Center dba Kaweah Health Skilled Nursing Facility]; Kaweah Delta Health Care, Inc.; Sequoia Regional Cancer Center, LLC; Sequoia Regional Cancer Center Medical Oncology, LLC; TKC Development, LLC; Ka Weah Delta Health Care District Guild [erroneously sued herein as Kaweah Health Care District Guild]; Kaweah Delta Hospital Foundation; and Kaweah Delta Health Care District (collectively, "Kaweah Defendants")

Second Chain: Defendants Kaweah Manor, Inc.; Renew Health Consulting Services, LLC; Sweetwater Care, LLC; Moyle's Central Valley Health Care, Inc.; Merritt Manor, Inc.; Twin Oaks Rehabilitation & Nursing Center, Inc.; Twin Oaks Assisted Living, Inc.; Porterville Convalescent, Inc.; Magnolia Health, Inc. (collectively, "Chain 2 Defendants")

The underlying facts are summarized by the Kaweah Defendants as follows:

“On October 16, 2022, Decedent slipped and fell to the floor. American Ambulance brought Decedent to Kaweah Medical Center and on October 17, 2022, Decedent underwent a hemiarthroplasty. On October 22, 2022, Decedent was transferred to Kaweah's Skilled Nursing Facility for post-surgical recovery. On November 23, 2022, Decedent passed away. On or around December 7, 2022, an autopsy was performed on Decedent. The autopsy lists Decedent's cause of death as 'sepsis (blood infection) due to a large (Stage IV) decubitus ulcer on the lower back area.'”

The Kaweah Defendants have resolved this matter with Plaintiffs for the sum of \$950,000 in consideration for dismissal with prejudice of Kaweah Defendants from this action.

Because of the existence of the Chain 2 Defendants, the Kaweah Defendants seek this Court's determination that this matter was settled between Plaintiffs and the Kaweah Defendants in good faith pursuant to Code of Civil Procedure section 877.6.

No opposition appears filed

Authority and Analysis

California Code of Civil Procedure section 877 states:

Where a release, dismissal with or without prejudice, or a covenant not to sue or not to enforce judgment is given in good faith before verdict or judgment to one or more of a number of tortfeasors claimed to be liable for the same tort, or to one or more other co-obligors mutually subject to contribution rights, it shall have the following effect:

(a) It shall not discharge any other such party from liability unless its terms so provide, but it shall reduce the claims against the others in the amount stipulated by the release, the dismissal or the covenant, or in the amount of the consideration paid for it, whichever is the greater.

(b) It shall discharge the party to whom it is given from all liability for any contribution to any other parties.

(c) This section shall not apply to co-obligors who have expressly agreed in writing to an apportionment of liability for losses or claims among themselves.

(d) This section shall not apply to a release, dismissal with or without prejudice, or a covenant not to sue or not to enforce judgment given to a co-obligor on an alleged contract debt where the contract was made prior to January 1, 1988.

Section 877.6, subdivision (a)(1) provides, in relevant part, that, on noticed motion, “[a]ny party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors.” (Code Civ. Proc., § 877.6, subd. (a)(1).)

“[Code of Civil Procedure] Section 877.6 was enacted by the Legislature in 1980 to establish a statutory procedure for determining if a settlement by an alleged joint tortfeasor has been entered into in good faith and to provide a bar to claims of other alleged joint tortfeasors for equitable contribution or partial or comparative indemnity when good faith is shown.” (IRM Corp. v. Carlson (1986) 179 Cal.App.3d 94, 104.)

Code of Civil Procedure section 877.6 affords the court with the discretion to determine whether a settlement reached by opposing parties in litigation is in good faith such that it is “within the reasonable degree of the settling tortfeasor's proportional share of comparative liability for the plaintiff's injuries” based on the facts and circumstances in the particular

case. (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal. 3d 488, 499.)

"In moving under section 877.6 for a good faith settlement determination, the moving party must set forth the value of the consideration paid and an evidentiary basis for that valuation, and must demonstrate that the valuation 'was reached in a sufficiently adversarial manner to justify the presumption that a reasonable valuation was reached.'" (Franklin Mint Co. v. Superior Court (2005) 130 Cal.App.4th 1550, 1558.)

However, the moving party's initial evidentiary burden depends on whether the good faith of the settlement is being contested. As noted, no party asserts a lack of good faith.

Therefore, if the non-settling defendants do not oppose the motion on the good faith issue, a "barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case, is sufficient." City of Grand Terrace v. Sup.Ct. (Boyter) (1987) 192 Cal.App.3d 1251, 1261.)

There is no precise yardstick for measuring "good faith" of a settlement with one of several tortfeasors. "Good faith" depends upon what the plaintiffs knew about liability at the time of settlement, not evidence that might be acquired later. (Tech-Bilt, Inc. v. Woodward-Clyde & Assocs. (1985) 38 Cal.3d 488, 499.) The following factors have been identified to assist in determining good faith:

- (a) A rough approximation of plaintiffs' total recovery and the settlor's proportionate liability;
- (b) The amount paid in settlement;
- (c) A recognition that a settlor should pay less in settlement than if found liable after a trial;
- (d) The allocation of the settlement proceeds among plaintiffs;
- (e) The settlor's financial condition and insurance policy limits, if any; and
- (f) Evidence of any collusion, fraud, or tortious conduct between the settlor and the plaintiffs aimed at making the nonsettling parties pay more than their fair share. (Id. at 499.)

The settling Defendants' proportionate liability is a critical factor: "The ultimate determinant of good faith is whether the settlement is grossly disproportionate to what a reasonable person at the time of settlement would estimate the settlor's liability to be." (City of Grand Terrace, supra, 192 Cal.App.3d at 1262.) The Court must also consider not only the settlor's potential liability to plaintiff, but also its proportionate share of culpability as among all parties alleged to be liable for the same injury. (TSI Seismic Tenant Space, Inc. v. Sup.Ct. (Geocon) (2007) 149 Cal.App.4th 159, 166.)

Here, the settlement sum of \$950,000, allocated equally amongst the Plaintiffs. Kaweah sufficiently indicates the settlement is within the ballpark and estimates Kaweah's potential recovery given Kaweah's anticipated defenses including the (1) failure to comply with the Government Tort Claims Act, (2) application of the statute of limitations under Code of Civil Procedure section 340.5, and (3) failure to allege alter-ego theory. Further, that Kaweah would produce expert testimony that (1) Kaweah defendants' nursing, resident, non-attending physician, and non-midlevel staff (a) met the standard of care in all aspects of their care and treatment of Decedent, and (b) did not contribute to Decedent's outcome; and (2) throughout the course of Decedent's treatment at KHSNF, the nursing, non-physician, and non-midlevel staff did not act negligently or with recklessness, oppression, fraud, or malice.

The parties negotiated this settlement at mediation, and there is no evidence of any "collusion, fraud, or tortious conduct aimed to injure the interests of non-settling defendants."

As such, the Court grants the motion.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.